



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-34129-2026

Date of Decision.:19.06.2026

Bhupinder Punj

.....Petitioner

Vs.

State of Punjab

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Shubham Sharma, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 482 of the BNSS, 2023, petitioner prays for grant of pre-arrest bail in case FIR No.11 dated 30.11.2024 registered under Sections 384, 420, 465, 467, 468 and 120-B of IPC [corresponding to Sections 308, 318(4), 336(2), 338, 336(3) and 61 of BNS, 2023] at Police Station Economic Offences Wing, Vigilance Bureau, District Ludhiana.

2. At the outset, it is noticed that the present petition is the second attempt by the petitioner to secure the extraordinary relief of anticipatory bail in the aforesaid FIR. The record reveals that the FIR was registered on 30.11.2024. The petitioner initially approached the learned Sessions Court seeking pre-arrest bail, which came to be dismissed on 16.12.2024. Thereafter, the petitioner invoked the jurisdiction of this Court by filing CRM-M-65623-2024, which was dismissed vide a detailed order dated 16.01.2025 (Annexure P-2). The matter was then carried to the Hon'ble Supreme Court by way of a Special Leave Petition, which was also dismissed on 28.07.2025 (Annexure P-4). Not only that, the petitioner subsequently filed CRM-M-59432-2025 seeking quashing of the FIR, but the said petition was withdrawn on 30.01.2026.

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3. The only circumstance now sought to be projected as a change warranting reconsideration of the prayer for anticipatory bail is that the investigation has been completed and the final report has been presented before the competent Court.

4. This Court is unable to accept the aforesaid submission. It is a settled principle that a second or successive petition for anticipatory bail is maintainable only upon the disclosure of a substantial and genuine change in circumstances occurring after the rejection of the earlier petition. Such change must be of a nature, which materially alters the factual or legal position considered while declining the earlier relief. Mere progression of the investigation to its logical conclusion or presentation of the challan cannot, by itself, be treated as a fresh circumstance entitling an accused to re-agitate a prayer which has already been declined by the Sessions Court, this Court and even the Hon'ble Supreme Court. Acceptance of such a contention would render the doctrine governing successive bail petitions wholly otiose and would permit repeated litigation on identical grounds.

5. Rather, what is striking in the present case is that despite rejection of the petitioner's prayer for anticipatory bail at three successive judicial forums, including the Hon'ble Supreme Court, the petitioner continues to remain beyond the reach of the investigating agency. The FIR was registered in November, 2024 and more than one and a half years have elapsed thereafter. Yet no satisfactory explanation is forthcoming as to why the petitioner has not been taken into custody, if his custodial interrogation or arrest was considered necessary by the investigating agency. Such a state of affairs prima facie raises serious concerns regarding the manner in which the investigation has been conducted and the effectiveness of the efforts undertaken for securing the presence of the accused.

6. This Court has repeatedly deprecated the growing tendency of litigants to file successive petitions seeking anticipatory bail without any real or substantial change in circumstances. Such repeated attempts not

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only amount to an abuse of the process of law but also result in unnecessary consumption of valuable judicial time. Judicial discipline and the principle of finality attached to earlier orders require that successive petitions be entertained only in exceptional circumstances, which are conspicuously absent in the present case.

7. In view of the aforesaid facts and circumstances, finding no merit in the present petition, the same is dismissed with costs quantified at ₹50,000/-.

8. The aforesaid amount shall be deposited by the petitioner with the District Legal Services Authority, Ludhiana within a period of two weeks from today. A copy of this order be forwarded to the Chairman and Secretary, District Legal Services Authority, Ludhiana, who shall ensure compliance and shall be at liberty to initiate appropriate proceedings for recovery in accordance with law in the event of default.

9. Considering the peculiar facts noticed above, particularly the failure to secure the arrest of the petitioner despite rejection of his prayer for anticipatory bail by the learned Sessions Court, this Court and the Hon'ble Supreme Court, a copy of this order shall also be forwarded to the Director General of Police, Punjab, who shall examine the matter and ascertain the reasons for the apparent inaction in securing the petitioner. Appropriate corrective measures, if warranted, shall be taken in accordance with law so as to ensure that judicial orders are implemented in their true letter and spirit and that public confidence in the administration of criminal justice is not undermined.

(DEEPAK GUPTA)
JUDGE

June 19, 2024

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No